

MASTER SUPPLY, DARK STORE & SMART STORE AGREEMENT

(For Factory & Wholesaler – B2B + B2C Quick Commerce Model)

This Agreement ("Agreement") is executed on __24_ / __01_ / 2026__ ("Effective Date").

1. PARTIES

1.1 Platform

Dealplex, a company / LLP / proprietorship (as applicable), engaged in the business of Quick Commerce, operating Dark Stores and Smart Stores, and carrying out B2B and B2C distribution of products through technology-enabled infrastructure including but not limited to:

- Mobile applications and web platforms
- Dark stores and smart stores
- Warehouses and fulfilment centres
- Integrated logistics and last-mile delivery networks

Dealplex may operate directly and/or through its affiliates, subsidiaries, franchisees, logistics partners or service providers.

Dealplex shall hereinafter be referred to as "Dealplex", "Platform", or "Company", unless the context otherwise requires.

1.2 Supplier

Factory / Wholesaler / Manufacturer / Authorized Distributor, being a legally valid business entity, engaged in the manufacture, distribution or wholesale supply of products.

Supplier Details:

- **Legal Name:** _ KIRAN FOODS _____
- **Constitution:** **Proprietorship** / Partnership / LLP / Private Limited / Public Limited
- **GSTIN:** __ 27AKEPG3053F1ZJ _____
- **Registered Address:** 406, jaibheem chouck , ,Near mirchi bajar puliya ,itwari ,Nagpur, Maharashtra 440022 _____
- **Principal Place of Business:** _____ NAGPUR _____
- **Authorized Signatory:** _ KIRAN FOODS _____

The Supplier confirms that it is duly registered, licensed and authorized to supply the Products under applicable laws and shall remain compliant for the duration of this Agreement.

The Supplier shall hereinafter be referred to as "Supplier", unless the context otherwise requires.

1.3 Relationship Between the Parties

1.3.1 The relationship between Dealplex and the Supplier is strictly principal-to-principal.

1.3.2 Nothing contained in this Agreement shall be deemed to create:

- A partnership
- A joint venture
- An agency
- An employment relationship

between the Parties.

1.3.3 Neither Party shall have any authority to bind or represent the other Party in any manner whatsoever.

1.4 Representations & Authority

1.4.1 Each Party represents and warrants that:

- It has full power and authority to enter into this Agreement
- Execution of this Agreement does not violate any law or existing contract

1.4.2 The person signing this Agreement on behalf of the Supplier represents that he/she is duly authorized to bind the Supplier.

1.5 Independent Obligations

Each Party shall be responsible for:

- Its own employees, agents and contractors
- Compliance with applicable laws
- Its own costs, taxes and statutory obligations

2. BUSINESS MODEL ACKNOWLEDGEMENT

(Inventory-Led | Hybrid Model | Multi-Channel Sales)

2.1 Understanding of Dealplex Business Model

2.1.1 The Supplier expressly acknowledges, understands and agrees that Dealplex operates a technology-driven quick commerce platform using inventory-led as well as hybrid inventory business models.

2.1.2 The Supplier agrees that Products supplied under this Agreement may be:

- Procured, stocked and managed directly by Dealplex, and/or
- Stored, handled and distributed through Dealplex-controlled infrastructure, including:
 - Dark Stores
 - Smart Stores
 - Warehouses / Fulfilment Centres

2.1.3 The Supplier further acknowledges that Products may be sold, distributed or fulfilled through multiple channels operated by Dealplex, including but not limited to:

- B2C sales to end consumers through mobile applications, websites or instant delivery services
- B2B sales to retailers, institutions, corporate customers and bulk buyers

2.1.4 The Supplier agrees that channel allocation, inventory deployment and fulfilment strategy shall be solely determined by Dealplex based on operational, commercial or strategic considerations.

2.2 Waiver of Objection & Commercial Acceptance

2.2.1 The Supplier irrevocably waives any right to object to or dispute Dealplex's decisions relating to:

- Consumer pricing of Products
- Discounts, promotions, offers or bundled sales
- Margin structure, commissions or commercial arrangements
- Allocation of Products between B2B and B2C channels

2.2.2 The Supplier acknowledges that:

- Pricing and discounting may vary across channels
- Products may be sold at different prices to different customer segments
- Certain sales may be executed below cost as part of strategic initiatives

2.2.3 The Supplier shall not:

- Raise any claim for loss of margin or business
- Seek compensation or price protection
- Interfere with or influence Dealplex's commercial strategy

2.3 No Exclusivity or Volume Commitment

2.3.1 The Supplier acknowledges that:

- This Agreement is non-exclusive

- Dealplex may engage multiple suppliers for similar or identical products

2.3.2 No minimum purchase, order volume or revenue commitment is guaranteed by Dealplex unless expressly agreed in writing.

2.4 Final Authority of Platform

All decisions of Dealplex relating to:

- Inventory model
- Storage location
- Channel allocation
- Pricing and commercial strategy

shall be final, binding and non-challengeable by the Supplier.

3. PRODUCT RESPONSIBILITY & COMPLIANCE

(Deep, Strict & Non-Negotiable)

The Supplier acknowledges that product integrity, legality and compliance are critical to Dealplex's business, consumer trust and regulatory standing, and therefore agrees to the following obligations, which shall be absolute, unconditional and continuous.

3.1 Product Authenticity

3.1.1 The Supplier shall supply only genuine, original and authentic products.

3.1.2 The Supplier expressly represents and warrants that:

- No counterfeit, fake, adulterated or substandard products shall be supplied
- No parallel imports, grey-market goods or unauthorized stock shall be supplied
- All Products are sourced only from authorized manufacturers, brand owners or approved distribution channels

3.1.3 Any violation of authenticity shall be treated as a serious and material breach, attracting:

- Immediate termination
 - Permanent delisting / blacklisting
 - Legal and criminal action, wherever applicable
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3.2 Legal & Regulatory Compliance

3.2.1 The Supplier shall be solely and fully responsible for ensuring that all Products comply with all applicable Central, State and local laws, including but not limited to:

- Goods and Services Tax Act (GST)
- Legal Metrology Act and related rules
- Food Safety and Standards Act (FSSAI), for food and consumables
- Drugs and Cosmetics Act, for pharma, health or regulated products
- Consumer Protection laws
- Any applicable State-specific rules, notifications or guidelines

3.2.2 The Supplier shall:

- Obtain and maintain all necessary licenses, registrations and approvals
- Ensure Products are not prohibited, restricted or banned under law
- Promptly inform Dealplex of any regulatory changes, suspensions or notices affecting Products

3.2.3 Any regulatory notice, seizure, penalty or prosecution arising from Product non-compliance shall be entirely borne by the Supplier.

3.3 Labeling, Packaging & Disclosure Requirements

3.3.1 Each Product supplied must be properly packaged, sealed and labeled, in strict compliance with applicable laws and platform standards.

3.3.2 Mandatory labeling details shall clearly and legibly mention:

- Maximum Retail Price (MRP), where applicable
- Manufacturing date
- Expiry or “Best Before” date
- Batch / lot number
- Name and complete address of manufacturer / packer / importer

3.3.3 Labels must be:

- Clear, legible and tamper-proof
 - Consistent with invoice and batch details
 - Not altered, overwritten or obscured
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3.4 Inspection, Audit & Verification Rights

Dealplex shall have the right to:

- Inspect Products at delivery or during storage
- Conduct audits or quality checks

- Seek supporting documents related to sourcing, licensing or compliance

The Supplier shall fully cooperate and provide all required information.

3.5 Material Breach & Consequences

Any breach of this Clause shall constitute a material breach of the Agreement and shall entitle Dealplex, without prejudice to other rights, to:

- Immediate suspension or termination
 - Rejection or recall of Products
 - Imposition of penalties
 - Recovery of losses and damages
 - Initiation of legal and regulatory action
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4. SHELF LIFE & EXPIRY NORMS

(Critical / Non-Negotiable Product Standard)

4.1 Minimum Shelf-Life Requirement at Delivery

The Supplier shall ensure that all Products delivered to Dealplex have a minimum remaining shelf life at the time of delivery as specified below, unless otherwise communicated in writing by Dealplex:

Product Category	Minimum Remaining Shelf Life at Delivery
FMCG / Grocery	80% of total shelf life
Dairy / Fresh	As per Dealplex Platform SOP
Cosmetics / Personal Care	70% of total shelf life
Pharma / Health Products	80% of total shelf life

The Supplier acknowledges that shelf-life compliance is critical to quick commerce operations and consumer safety.

4.2 Verification & Inspection

4.2.1 Dealplex reserves the right to inspect and verify shelf life at the time of delivery and at any stage during storage.

4.2.2 Shelf life shall be calculated from:

- Manufacturing date to expiry date

- Batch / lot details mentioned on the product and invoice

Any discrepancy shall be treated as non-compliance.

4.3 Rejection of Non-Compliant Products

Any Products that do not meet the minimum shelf-life requirements:

- Shall be rejected immediately, in whole or in part
- Returned at the Supplier's cost, including reverse logistics
- Shall not be accepted or stored in Dealplex dark stores or smart stores

Dealplex's decision regarding rejection shall be final and binding.

4.4 Penalties & Consequences

4.4.1 In addition to rejection and return, Dealplex may:

- Impose penalties as per Platform policy
- Deduct applicable amounts from Supplier payments
- Reduce order volumes
- Suspend or delist the Supplier in case of repeated violations

4.4.2 Repeated shelf-life violations shall be treated as a material breach of this Agreement.

4.5 No Waiver

Acceptance of any Product on one occasion shall not:

- Waive shelf-life requirements for future deliveries
 - Limit Dealplex's right to enforce this Clause strictly
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5. INVENTORY OWNERSHIP & RISK

5.1 Title & Ownership of Products

5.1.1 Title, ownership and risk in the Products supplied under this Agreement shall pass to Dealplex only upon physical delivery and formal acceptance of the Products at the designated dark store, smart store or warehouse.

5.1.2 Mere dispatch, transit, or entry of Products into Dealplex premises shall not constitute acceptance.

5.2 Risk of Loss or Damage

5.2.1 The Supplier shall bear all risks of loss, damage, leakage, spoilage, theft or deterioration of the Products until acceptance by Dealplex.

5.2.2 Any Products found to be:

- **Damaged**
- **Leaked**
- **Spoiled**
- **Tampered**
- **Unfit for sale**

prior to acceptance shall be solely the responsibility of the Supplier and may be rejected or returned at the Supplier's cost.

5.3 Acceptance & Rejection Rights

5.3.1 Dealplex reserves the right to:

- **Inspect Products upon delivery**
- **Accept or reject Products, in whole or in part**

5.3.2 Rejection may be based on:

- **Quality issues**
- **Packaging defects**
- **Expiry or shelf-life non-compliance**
- **Documentation errors**

Dealplex's decision shall be final and binding.

5.4 Product Recall (Voluntary or Statutory)

5.4.1 In the event of any product recall, whether:

- **Voluntary**
- **Mandated by any authority**
- **Initiated due to safety, quality or regulatory concerns**

the Supplier shall bear entire responsibility, including but not limited to:

- **Immediate notification to Dealplex**
- **Retrieval of affected inventory**
- **Reverse logistics and transportation costs**
- **Consumer refunds, replacements or compensation**

- Regulatory penalties, fines or notices
 - Disposal or destruction costs, if applicable
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5.5 No Limitation of Liability

The Supplier's obligations under this Clause shall:

- Apply irrespective of acceptance status
- Be unlimited in nature
- Be in addition to indemnity and penalty clauses

6. ORDER MANAGEMENT & FULFILMENT

(Strict | SLA-Driven | Platform-Controlled)

6.1 Order Generation & Placement

6.1.1 Orders for Products may be generated and placed by Dealplex through any of the following modes:

- Auto-generated orders based on system algorithms, inventory thresholds or demand patterns
- Forecast-based orders derived from sales projections or seasonal requirements
- Manual orders placed through ERP, dashboard, email, WhatsApp or any other communication channel

6.1.2 The Supplier acknowledges that order quantities and frequency may vary and that no minimum order volume is guaranteed.

6.2 Order Acknowledgement & Acceptance

6.2.1 The Supplier shall acknowledge and accept each order within the SLA timelines communicated by Dealplex.

6.2.2 Failure to acknowledge orders within the SLA shall be treated as:

- Order non-compliance
 - SLA breach
 - Grounds for penalty or volume reduction
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6.3 Fulfilment Obligations

The Supplier shall ensure that all orders are fulfilled strictly in accordance with the order details and applicable standards, including:

- Delivery of correct SKU, brand, variant and quantity
 - Compliance with packaging, labeling and shelf-life norms
 - Dispatch within agreed timelines
 - Delivery to the specified dark store, smart store or warehouse
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6.4 Documentation & Compliance

6.4.1 Each shipment must be accompanied by:

- A valid and compliant tax invoice
- E-way bill, wherever applicable
- Any additional statutory or platform-required documentation

6.4.2 Invoices must accurately reflect:

- Product details
- Quantity
- GST, HSN and tax rates

Any mismatch or error shall be treated as an SLA breach.

6.5 Partial, Short or Incorrect Delivery

6.5.1 Any of the following shall constitute a material SLA breach:

- Partial delivery
- Short supply
- Delivery of incorrect SKU or variant
- Missing or excess items

6.5.2 Dealplex may, at its discretion:

- Reject the delivery
 - Accept partial delivery with penalties
 - Require immediate replacement or credit note
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6.6 Risk & Responsibility

- Risk of loss or damage remains with the Supplier until delivery and acceptance by Dealplex
- Damage or discrepancies detected at delivery shall be Supplier liability

6.7 No Waiver

Acceptance of any delivery by Dealplex shall not:

- Waive the Supplier's obligations
- Limit Dealplex's right to impose penalties or other remedies

7. RETURNS & REPLACEMENT POLICY

7.1 RETURNS – B2C (End Consumers)

7.1.1 The Supplier expressly agrees that Dealplex may, at its sole discretion, accept returns from end consumers for reasons including, but not limited to:

- Expired or near-expiry products
- Damaged, leaked, tampered or improperly sealed packaging
- Quality defects, taste, odor or performance issues
- Wrong item or incorrect SKU delivered
- Products found non-compliant with applicable laws or regulations

7.1.2 The Supplier acknowledges that such returns are critical to consumer trust and agrees that all costs and liabilities arising from such returns shall be borne entirely by the Supplier, including:

- Cost of the returned product
- Reverse logistics and handling charges
- Full consumer refund amount issued by Dealplex
- Any associated customer compensation

7.1.3 Dealplex's decision to accept or reject a consumer return shall be final and binding, and shall not be subject to dispute by the Supplier.

7.2 RETURNS – B2B (Retailers / Bulk Buyers)

7.2.1 Dealplex may accept returns from B2B customers including retailers, institutions or bulk buyers for reasons including:

- Short supply or incorrect quantity
- Transit-related damage
- Quality defects or non-conformance
- Expiry or shelf-life related issues

7.2.2 In such cases, the Supplier shall, at Dealplex's option:

- Replace the returned goods at its own cost, or
- Issue a valid credit note in favour of Dealplex within ____ (__) working days from the date of return confirmation

7.2.3 Failure to replace goods or issue credit note within the specified period shall entitle Dealplex to deduct the equivalent amount from Supplier payments, without prior notice.

7.3 UNSOLD & NEAR-EXPIRY INVENTORY

7.3.1 Near-Expiry Inventory

- The Supplier shall proactively monitor shelf life and replace or lift near-expiry stock from Dealplex dark stores, smart stores or warehouses
 - Near-expiry thresholds shall be as defined by Dealplex from time to time
 - Any loss due to expiry shall be borne by the Supplier
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7.3.2 Unsold Inventory

- Unsold inventory shall be handled strictly as per Dealplex's internal inventory and return policies
 - Dealplex may, at its sole discretion:
 - Return unsold stock to the Supplier
 - Require replacement or credit note
 - Dispose of such stock where necessary
 - The final decision regarding unsold inventory shall rest solely with Dealplex, and the Supplier shall not raise any objection or claim.
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7.4 Recovery & Set-Off Rights

Dealplex may recover any return-related amounts by:

- Deduction from current or future payments
 - Adjustment against invoices or credits
 - Recovery as a debt
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7.5 No Limitation of Other Rights

This Returns & Replacement Policy is in addition to:

- Penalty rights
- Indemnity obligations

- SLA enforcement
- Termination rights

8. PRICING, DISCOUNTS & COMMERCIAL CONTROL

(Platform Authority / Strategic Pricing Rights)

8.1 Net Landing Price Declaration

8.1.1 The Supplier shall provide to Dealplex the net landing price for each Product, which shall be inclusive of all costs, charges, duties, taxes (except GST as separately invoiced), freight, packaging, handling and any other expenses.

8.1.2 The Supplier confirms that the net landing price is fair, final and non-negotiable for the applicable period unless revised in writing and approved by Dealplex.

8.2 Absolute Pricing Rights of Dealplex

8.2.1 Dealplex shall have the absolute, sole and unrestricted right to determine, revise and control the final selling price of the Products offered on the Platform, across all channels including Dark Stores, Smart Stores, B2B and B2C.

8.2.2 Without limitation, Dealplex may at its discretion:

- Offer instant discounts, coupons, cashback or bundled offers
- Conduct promotional, festive or clearance sales
- Sell Products at prices below the net landing price or cost as part of strategic, competitive or customer acquisition initiatives

8.2.3 The Supplier expressly acknowledges that such pricing decisions are commercially driven and integral to Dealplex's business model.

8.3 No Objection, No Compensation, No Interference

8.3.1 The Supplier irrevocably agrees that it shall not:

- Raise any dispute, claim or objection regarding pricing, discounts or offers
- Claim compensation, reimbursement, margin protection or loss recovery
- Interfere with, influence or attempt to control Dealplex's pricing strategy

8.3.2 Any loss or impact on Supplier margins due to pricing decisions shall be solely at the Supplier's risk.

8.4 Non-Reference to MRP or External Pricing

The Supplier shall not:

- Object to deviation from MRP or other market prices, where legally permissible
 - Use external pricing benchmarks to challenge Platform pricing
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8.5 Final & Binding Authority

All decisions of Dealplex relating to pricing, promotions and commercial control shall be final, binding and non-challengeable, and shall not constitute any breach of this Agreement.

9. PAYMENTS

9.1 Payment Cycle: Payments shall be made within ____ (__) working days from the date of invoice approval by Dealplex.

9.2 Mode of Payment: All payments shall be made only through bank transfer to the Supplier's registered bank account. Cash payments are strictly prohibited.

9.3 Adjustments & Deductions: Dealplex shall have the right to:

- Adjust amounts towards product returns or replacements
- Deduct penalties, damages or charges
- Set off any amounts payable against Supplier liabilities

9.4 Withholding of Payments: Dealplex may withhold or suspend payments, in whole or in part, in case of:

- Ongoing disputes
- SLA breaches
- Quality, tax or regulatory issues

9.5 No Interest / Claim: Supplier shall not be entitled to any interest, compensation or claim on delayed or withheld payments arising under this Clause.

10. TAXATION & GST LIABILITY

(Supplier-Only Responsibility | Full Recovery Rights)

10.1 Supplier's Sole Tax Responsibility

The Supplier shall be solely and exclusively responsible for all tax-related obligations arising out of or in connection with this Agreement, including but not limited to:

- Timely filing of all GST returns (GSTR-1, GSTR-3B and any other applicable returns)
- Payment of all applicable GST, interest, late fees and penalties

- Correct classification of goods, HSN codes and tax rates
- Issuance of valid, compliant tax invoices and e-way bills (where applicable)

Dealplex shall not be responsible for any tax default or non-compliance by the Supplier.

10.2 Input Tax Credit (ITC) & Credit Reversal

10.2.1 Supplier shall ensure that:

- All invoices uploaded in GST portal match invoices issued to Dealplex
- Taxes collected are actually deposited with the Government

10.2.2 In the event that:

- Input Tax Credit (ITC) is denied, restricted or reversed
- Mismatch occurs due to Supplier default or error

The Supplier shall fully reimburse Dealplex for:

- Reversed ITC amount
 - Applicable interest and penalties
 - Any consequential loss
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10.3 Government Notices & Proceedings

The Supplier shall be solely responsible for responding to, defending and resolving:

- Any notices, audits, inquiries or investigations by GST or tax authorities
- Any demand, attachment, penalty or prosecution arising from Supplier's tax default

Supplier shall immediately inform Dealplex of any such notice impacting transactions under this Agreement.

10.4 Recovery of Losses by Dealplex

10.4.1 Any loss, cost, demand or penalty suffered by Dealplex due to Supplier's tax default shall be fully recoverable from the Supplier.

10.4.2 Dealplex may recover such amounts by:

- Direct deduction from current or future payouts
- Adjustment against invoices or credits
- Recovery as a debt, including legal action

No prior approval or consent of the Supplier shall be required.

10.5 Right to Withhold Payments

Dealplex reserves the right to:

- Withhold payments
- Suspend settlements

Where GST compliance issues or mismatches are identified, until resolution.

10.6 Indemnity & Survival

- Tax-related indemnity obligations are independent and in addition to general indemnity
 - This Clause shall survive termination or expiry of the Agreement
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11. SLA & PERFORMANCE GOVERNANCE

(Continuous Monitoring | Platform-Defined Standards)

11.1 Continuous Performance Monitoring

The Supplier expressly agrees that its performance shall be continuously monitored, evaluated and measured by Dealplex through system reports, audits, customer feedback, operational data and compliance checks.

Dealplex's evaluation of Supplier performance shall be final and binding.

11.2 Service Level Agreement (SLA) Parameters

Supplier shall comply with the following minimum performance standards, as may be updated by Dealplex from time to time:

(a) Dispatch Timelines

- Orders must be dispatched within Platform-defined timelines
- Delays due to internal issues of Supplier shall not be excused
- Failure shall be treated as an SLA breach

(b) Fill Rate

- Minimum fill rate: 98% or higher
- Partial or short supply shall be counted as failure
- Chronic under-fill may lead to volume reduction

(c) Invoice Accuracy

- Invoice accuracy must be 100%
- Errors in GST, HSN, quantity or pricing constitute breach

- Repeated errors may attract penalties and audits

(d) Damage Percentage

- Maximum allowable damage rate: 0.5%
- Damage due to poor packaging, leakage or handling is Supplier liability
- Excess damage shall attract penalties and return costs

(e) Expiry & Shelf-Life Compliance

- Products must meet minimum shelf-life norms at delivery
- Expired or near-expiry products shall be rejected immediately
- Repeated expiry issues may lead to immediate suspension

11.3 Performance Review & Classification

Dealplex may classify Suppliers as:

- Preferred Supplier
- Standard Supplier
- Watchlist Supplier
- Restricted / Suspended Supplier

Classification may affect:

- Order volumes
- Payment priority
- Platform visibility

11.4 Consequences of SLA Failure

Repeated or material SLA failures may result in one or more of the following actions, at Dealplex's sole discretion:

(a) Penalties

- Monetary penalties per incident or per batch
- Auto-deduction from payouts

(b) Order Volume Reduction

- Reduced replenishment
- Temporary pause in new orders

(c) Suspension

- Temporary blocking of Supplier account
- Delisting of products during suspension
- Reinstatement subject to corrective action

(d) Termination

- Immediate termination for chronic or severe breaches
 - No compensation or notice required
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11.5 No Waiver & No Minimum Guarantee

- No minimum order volume is guaranteed
 - Past performance or leniency does not create future rights
 - Failure to enforce SLA at any time does not waive future enforcement
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11.6 Supplier Acknowledgement

The Supplier expressly acknowledges that:

- SLA compliance is critical to Dealplex's business
 - Failure may cause irreparable harm to platform reputation
 - Dealplex's decisions regarding SLA enforcement shall be final
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11.7 Survival

This Clause shall survive termination or expiry of the Agreement.

12. PENALTY & RECOVERY RIGHTS

12.1 Right to Impose Penalties

The Supplier expressly agrees and acknowledges that Dealplex shall have the unconditional right to impose penalties for any breach of this Agreement, SLA, platform policies, product standards or applicable laws.

Such penalties may be imposed without prior notice, approval, consent or confirmation from the Supplier.

12.2 Events Attracting Penalties

Penalties may be imposed including, but not limited to, the following events:

(a) Operational & SLA Breaches

- Late delivery or delayed dispatch
- Partial supply or short quantity
- Incorrect SKU, wrong item or mismatch
- Failure to meet fill-rate or dispatch timelines

(b) Product & Quality Issues

- Expired or near-expiry products
- Damaged, leaked or improperly packed products
- Substandard, defective or recalled products
- Counterfeit or non-compliant goods

(c) Consumer Complaints (B2B & B2C)

- Refunds or replacements issued to customers
- Quality, safety or hygiene complaints
- Repeated negative feedback impacting customer experience

(d) Regulatory & Legal Penalties

- Penalties, fines or notices imposed by:
 - GST authorities
 - FSSAI
 - Legal Metrology
 - Any Central or State authority
- Seizure, prohibition or recall costs

12.3 Mode of Recovery (Auto-Deduction)

12.3.1 Dealplex may recover penalties by:

- Direct deduction from:
 - Current invoices
 - Future payouts
 - Security deposits (if any)
- Adjustment against returns, credits or settlements

12.3.2 Supplier expressly authorizes Dealplex to make such deductions without dispute or objection.

12.4 No Limitation on Recovery

- Penalties may be imposed per incident, per order or per batch
- Repeated breaches may attract cumulative penalties
- Penalty imposition shall be in addition to:
 - Indemnity
 - Damages
 - Termination rights

12.5 No Waiver of Other Rights

Imposition or recovery of penalties shall not limit or waive Dealplex's right to:

- Suspend Supplier
- Delist products
- Reduce order volumes
- Terminate the Agreement
- Initiate legal or regulatory action

12.6 Supplier Waiver & Acknowledgement

The Supplier expressly:

- Waives any right to prior hearing or approval
- Waives any claim of unfair deduction
- Agrees that penalties are a genuine pre-estimate of loss
- Accepts that Dealplex's decision shall be final and binding

12.7 Survival

This Clause shall survive termination or expiry of the Agreement.

13. PLATFORM RIGHTS

13.1 Absolute Platform Discretion

The Supplier expressly acknowledges and agrees that Dealplex shall have absolute, sole and unfettered discretion to manage, operate and control the Platform, including all commercial, operational and strategic decisions, without any obligation to consult or obtain consent from the Supplier.

13.2 Specific Rights of Dealplex

Without prejudice to the generality of Clause 13.1, Dealplex may, at any time and at its sole discretion, take any of the following actions:

(a) Product Listing & Delisting

- List, delist, suspend or permanently remove any Product
- Restrict availability of Products across:
 - Dark Stores
 - Smart Stores
 - B2B or B2C channels
- Modify product categorization, descriptions, images or visibility

(b) Supplier Suspension

- Temporarily or permanently suspend the Supplier
- Block Supplier's access to Platform systems, dashboards or order flow
- Impose suspension during investigation of any issue or complaint

(c) Volume & Order Control

- Increase, reduce or completely stop order volumes
- Reallocate volumes to other suppliers
- Modify replenishment frequency or quantities

(d) Termination of Agreement

- Terminate this Agreement:
 - With or without cause
 - With immediate effect or with notice
- Disable Supplier onboarding, listings or participation on the Platform

13.3 No Obligation to Assign Reason

Dealplex shall not be required to assign any reason, provide explanation, justification or prior notice for exercising any of its rights under this Clause.

The Supplier expressly waives any right to seek:

- Clarification
- Explanation
- Hearing or opportunity to be heard

13.4 No Claim for Loss of Business

The Supplier expressly agrees and acknowledges that:

- Exercise of Platform rights may result in loss of:
 - Orders
 - Revenue
 - Business opportunities
- Such loss shall not constitute any breach by Dealplex
- Supplier shall have no claim whatsoever for:
 - Loss of business
 - Loss of profit
 - Loss of goodwill
 - Loss of future opportunity

13.5 No Exclusivity or Minimum Guarantee

- Dealplex does not guarantee any minimum order volume
- Dealplex may engage multiple suppliers for the same or similar products
- Supplier shall have no exclusivity rights unless expressly agreed in writing

13.6 Non-Waiver of Rights

Failure or delay by Dealplex in exercising any right under this Agreement shall not constitute a waiver of such right.

13.7 Survival

The provisions of this Clause shall survive termination or expiry of this Agreement.

14. INDEMNITY

14.1 Supplier's Indemnity Obligation

The Supplier shall fully indemnify, defend and hold harmless Dealplex, its directors, officers, employees, affiliates, agents, logistics partners and representatives from and against any and all losses, damages, claims, demands, liabilities, penalties, fines, costs and expenses, including legal fees, arising out of or in connection with:

14.2 Scope of Indemnity (Non-Exhaustive)

The indemnity shall include, without limitation, claims arising from:

(a) Consumer Claims & Complaints

- Consumer grievances (B2B or B2C)
- Refunds, replacements or compensation
- Claims under Consumer Protection laws

(b) Product Liability & Quality Issues

- Defective, expired, substandard or unsafe products
- Counterfeit or unauthorized products
- Product recalls (voluntary or statutory)
- Health, safety or injury claims

(c) Regulatory & Government Action

- Notices, penalties or action by:
 - FSSAI
 - GST authorities
 - Legal Metrology
 - Any Central / State authority
- Seizure, suspension or prohibition of products

(d) GST, Tax & Statutory Liabilities

- GST demands, mismatches or reversals
- Interest, penalties or fines
- Denial of input tax credit due to Supplier default

(e) Brand, Reputation & Business Damage

- Loss of goodwill or brand value
- Negative publicity or media coverage
- Regulatory or public reputational harm caused by Supplier actions

(f) Legal Proceedings

- Civil, criminal or quasi-judicial proceedings
- Third-party claims
- Court cases, arbitration or investigations

14.3 Indemnity Mechanics

14.3.1 The Supplier shall:

- **Bear 100% financial responsibility for all indemnified claims**
- **Immediately reimburse Dealplex upon demand**
- **Pay costs directly if required by Dealplex**

14.3.2 Dealplex may:

- **Deduct indemnity amounts from any payments due**
 - **Recover amounts as a debt**
 - **Seek injunctive or equitable relief**
-

14.4 Duty to Defend

The Supplier shall, at its own cost:

- **Defend Dealplex against any claim**
 - **Appoint legal counsel acceptable to Dealplex**
 - **Not settle any matter without prior written consent of Dealplex**
-

14.5 No Limitation of Liability

The indemnity obligations:

- **Are not subject to any limitation of liability**
 - **Are in addition to any other rights or remedies available to Dealplex**
-

14.6 Survival of Indemnity

This Clause shall survive the termination or expiry of this Agreement for an indefinite period, irrespective of the reason for termination.

14.7 Acknowledgement by Supplier

The Supplier expressly acknowledges that:

- **Indemnity is a fundamental condition of this Agreement**
- **Any breach may cause irreparable harm to Dealplex**
- **Monetary compensation may be insufficient, entitling Dealplex to equitable remedies**

15. CONFIDENTIALITY & NON-BYPASS

15.1 Confidential Information

For the purpose of this Agreement, “Confidential Information” shall include, without limitation:

- Customer details (B2B & B2C), contact information, order data
- Pricing, margins, discounts, commissions, commercial terms
- Product performance data, demand trends, sales reports
- Platform technology, dashboards, SOPs, processes
- Dark store, smart store, warehouse and logistics information
- Any data or information disclosed by Dealplex, whether written, oral, electronic or digital

All such information shall remain the exclusive property of Dealplex.

15.2 Confidentiality Obligations of Supplier

The Supplier shall:

- a) Maintain strict confidentiality of all Confidential Information
 - b) Use such information solely for the purpose of fulfilling obligations under this Agreement
 - c) Not disclose, publish, share or make available any Confidential Information to any third party without prior written consent of Dealplex
 - d) Implement adequate safeguards to prevent unauthorized access, misuse or leakage
-

15.3 Non-Bypass & Non-Circumvention

15.3.1 The Supplier expressly agrees that it shall not directly or indirectly:

- Contact Dealplex customers (B2B retailers, institutions, bulk buyers or B2C consumers)
- Solicit, divert or attempt to divert customers away from Dealplex
- Offer products at different prices outside the Platform using Dealplex customer data
- Execute direct sales, deliveries or agreements with Platform customers identified through Dealplex

15.3.2 Any transaction with Dealplex customers must occur only through the Dealplex platform, unless expressly approved in writing by Dealplex.

15.4 Data Usage Restrictions

Supplier shall not use Dealplex data for:

- Personal or third-party commercial gain

- Competitive analysis or market exploitation
- Creation of parallel or competing business models
- Sharing with competitors or other platforms

All intellectual property and data rights shall vest solely with Dealplex.

15.5 Monitoring & Audit Rights

Dealplex shall have the right to:

- Monitor Supplier activity
- Audit compliance with confidentiality and non-bypass obligations
- Investigate suspected breaches without prior notice

Supplier shall provide full cooperation during such audits.

15.6 Consequences of Breach

Any breach of this Clause shall constitute a material breach, entitling Dealplex to:

- a) Immediate termination of this Agreement without notice
- b) Permanent delisting and blacklisting of Supplier
- c) Recovery of all losses, damages and penalties
- d) Injunctive relief and legal action under applicable law
- e) Withholding or adjustment of any pending payments

Supplier acknowledges that monetary damages alone may be insufficient, and agrees to equitable remedies.

15.7 Survival

The obligations under this Clause shall survive termination or expiry of this Agreement for an indefinite period.

16. TERM & TERMINATION

16.1 Term of Agreement

16.1.1 This Agreement shall commence from the Effective Date and shall remain valid for a period of ____ (__) years, unless terminated earlier in accordance with this Clause.

16.1.2 The Agreement may be automatically renewed for successive periods of ____ years on mutually agreed commercial terms, unless either Party provides a written notice of non-renewal at least 30 days prior to expiry.

16.2 Termination for Convenience (Platform Right)

16.2.1 Dealplex shall have the absolute right to terminate this Agreement without assigning any reason, by providing:

- 7 days' written notice, or
- Immediate termination by disabling Supplier access to the Platform.

16.2.2 The Supplier expressly agrees that:

- Termination for convenience shall not entitle Supplier to any compensation
 - Supplier shall have no claim for loss of business, profit, goodwill, or future orders
-

16.3 Termination for Cause (Immediate)

Dealplex may terminate this Agreement with immediate effect and without notice if the Supplier commits any of the following (including but not limited to):

(a) Product-Related Breaches

- Supply of expired, near-expiry, counterfeit, substandard or illegal products
- Repeated quality complaints from B2B or B2C customers
- Product recall due to regulatory or safety reasons

(b) SLA & Operational Breaches

- Repeated SLA failures
- Incorrect or short supply
- High damage or return rates
- Failure to meet shelf-life norms

(c) Legal & Compliance Breaches

- GST non-compliance or mismatch
- Government notices, penalties, or seizures
- Violation of FSSAI / Legal Metrology / other laws

(d) Commercial & Ethical Breaches

- Bypassing Dealplex to sell directly to customers
- Misuse of Dealplex data, pricing or business information
- Fraud, misrepresentation or false declarations

(e) Reputational Harm

- Any act that may bring reputational damage to Dealplex
- Social media, regulatory or public complaints affecting brand trust

16.4 Suspension Rights (Without Termination)

16.4.1 Without terminating this Agreement, Dealplex may:

- Temporarily suspend Supplier
- Reduce order volumes
- Delist specific products
- Block access to Platform systems

16.4.2 Suspension may be imposed:

- During investigation
- Pending resolution of disputes
- For repeated minor breaches

Suspension shall not be treated as breach by Dealplex.

16.5 Supplier-Initiated Termination

16.5.1 Supplier may terminate this Agreement by providing 30 days' prior written notice.

16.5.2 During notice period:

- Supplier must continue to fulfill all orders
- All obligations, SLAs and policies remain applicable

16.5.3 Supplier shall have no right to terminate immediately, except where mandated by law.

16.6 Consequences of Termination

Upon termination or expiry of this Agreement:

16.6.1 Inventory & Returns

- Dealplex may return unsold, near-expiry or recalled inventory
- Supplier shall bear:
 - Cost of goods
 - Reverse logistics
 - Disposal costs (if applicable)

16.6.2 Financial Settlement

- Dealplex may:
 - Adjust penalties

- Deduct returns and damages
- Withhold payments till dispute resolution

16.6.3 Data & Access

- Supplier access to systems shall be revoked
 - Supplier must cease use of Dealplex brand, data and materials
-

16.7 Survival of Clauses

The following clauses shall survive termination:

- Indemnity
 - Confidentiality
 - Returns & recall liability
 - Tax & regulatory liability
 - Limitation of liability
 - Governing law & jurisdiction
-

16.8 No Waiver

Termination or non-enforcement of any right by Dealplex shall not constitute a waiver of any other rights.

16.9 No Agency or Employment Claim

Termination shall not create:

- Employment relationship
- Agency rights
- Compensation or severance claims

Supplier waives all such claims permanently.

17. GOVERNING LAW & JURISDICTION

17.1 This Agreement shall be governed by and construed in accordance with the laws of India.

17.2 The Parties agree that courts located at the city designated by Dealplex from time to time shall have exclusive jurisdiction over all matters arising out of or in connection with this Agreement.

17.3 The Supplier expressly waives any objection to such jurisdiction on the grounds of venue, inconvenience, or otherwise.

 SIGNATURES

For Dealplex

Authorized Signatory

Name & Designation

Seal & Signature

For Supplier

KIRAN FOODS